

DEPARTMENT OF THE NAVY

NAVSUP WSS

5450 Carlisle Pike | PO Box 2020 | Mechanicsburg, PA 17055-0788

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity	NAVSUP WSS - Mechanicsburg	Type	A1				
Folder #	222920009	PD #					
Item Manager		Work Function	Planner	Phone		Code	N96
Technician		Work Function	Reprocurement Technician	Phone		Code	N9652
Buyer		Work Function	Contract Specialist	Phone		Code	N7M2

2. Description of the Action Being Approved

Description	Negotiation and award of a contract through other than full and open competition.
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3. Description of Supplies/Services

This J&A covers the acquisition of the following

☐ Spares ☒ Repair/Overhaul ☐ Modification ☐ Management ☐ Piece Parts ☐ Data Report

Nomenclature	See attachment	Quantity	See attachment
NSN	See attachment	Cage Code	
P/N	See Attachment	Unit Price	See attachment
Option	n	Option %	Days
Estimated Value			
Ship To			

Period of Performance: Expected Final Delivery Date

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 3

Acquire, for the second or subsequent time, directly from the actual manufacturer.

A/RMSC R

The Government does not own the data or the rights to the data needed to purchase / contract repair of this part from additional sources. It has been determined to be uneconomical to buy the data or rights to the data. It is uneconomical to reverse engineer the part. This code is used when the Government did not initially purchase the data and/or rights. If only one source has the rights or data to manufacture/repair this item, A/RMCs 3, 4, or 5 are valid. If two or more sources have the rights or data to manufacture/repair this item, A/RMCs 1 or 2 are valid.

This acquisition will be solicited to

██████████ L-3 COMMUNICATIONS CORP, is identified as the only approved source of repair as they have met the qualifications to manufacture and repair this specialized item. There are no authorized substitutes for this item as this is the only item known to meet performance and compatibility requirements within the higher assembly. ██████████ L-3 COMMUNICATIONS CORP, is the known historical source of repair and the only one that fulfill this obligation.

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsized on the government-wide point of entry on

05/18/2024

and as a result

No other vendor expressed interest

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

A technical review, which consisted of searching several Government databases including ITIMP, FLIS and ERP, has been completed on this item. Search criteria included Part Number, Design Control Activity, Cage Code, NSN, Nomenclature, AMC/AMSC, AAC, Criticality Coding, recorded approved source of supply, historical sources of supply and past contracts. Based on this market research the contracting officer has determined that the only known repair source is ██████████ L-3 COMMUNICATIONS CORP. If a company other than the one listed believes they have a compatible product or repair process, they can submit the item to the Engineering Program Office, to include research and development, drawings and test specifications. The program office may test and evaluate, when applicable, the item at the company's expense. Upon qualification, the approved company will be able to participate in current or future solicitations. ITIMP- Reviewed award history and other potential sources of repair, AMC/AMSC code, part number, CAGE code reflects ██████████ L-3 COMMUNICATIONS CORP as the only source of repair in the past. ERP - Search criteria included part number, design control activity, Cage code, NSN, Nomenclature, AMC/AMSC, AAC, and Criticality Coding which all matched with ITIMP.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

[REDACTED]

For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A No Previous J&A - Previously awarded under the SAT

9. Any Other Facts Supporting Other Than Full & Open Competition

N/A

History

Created By	[REDACTED]	Work Function	Reprocurement Technician	Created Date	[REDACTED]
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Requirements Cognizance Signature	[REDACTED]	Work Function	Planner	Requirements Cognizance Signature Date	[REDACTED]
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Technical Cognizance Signature	[REDACTED]	Work Function	Reprocurement Technician	Technical Cognizance Signature Date	[REDACTED]
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I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification Signature	[REDACTED]	Work Function	Contract Specialist	Contracting Officer Certification Signature Date	[REDACTED]
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Competition Advocacy Review And Concurrence Signature	[REDACTED]	Work Function	Competition Advocate	Competition Advocacy Review And Concurrence Signature Date	[REDACTED]
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I certify that this J&A is legally sufficient to the best of my knowledge and belief

Legal Sufficiency Review Signature	[REDACTED]	Work Function		Legal Sufficiency Review Signature Date	[REDACTED]
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I certify that this J&A is accurate and complete to the best of my knowledge and belief

Approval Required By Far 6.304 Signature	[REDACTED]	Work Function	Competition Advocate	Approval Required By Far 6.304 Signature Date	[REDACTED]
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